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CR-22-391

IN THE ARKANSAS SUPREME COURT

DOTTIE TRUDO **APPELLANT**

v. **CASE NO. CR-22-391**

STATE OF ARKANSAS **APPELLEE**

AN APPEAL FROM THE
CRAWFORD COUNTY CIRCUIT COURT

PETITION FOR REVIEW

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Background

Dottie Trudo pleaded guilty to felony drug charges and received six years' probation instead of the 42 years in prison she could have gotten. Unsurprisingly, one condition of Trudo's probation was that she not commit further crimes. Yet less than six months later, Trudo did exactly that and was arrested for the same thing that had landed her on probation in the first place. In response, the circuit court correctly revoked Trudo's probation and sentenced her to prison.

The court of appeals disagreed. It held that Trudo couldn't be revoked for violating the law because she wasn't given a written statement that she couldn't break the law while on probation. That's nonsense because under Arkansas law good behavior—including not breaking the law—is always a condition of probation, Ark. Code Ann. 5-4-303(b), and reflecting that, Trudo's sentencing order said as much, (RP 19). And while the decision below purported to rest on Section 303(e)(2)'s requirement that probationers be given a "written statement explicitly setting forth" release conditions and the progeny of *Ross v. State*, 268 Ark. 189 (1980), it's ultimately a holding that ignorance of the law excuses non-compliance.

That's not the law, and this Court should grant review and ultimately affirm the circuit court's order. In so doing, this Court should either: (1) resolve an inconsistency in the court of appeals' cases created by the decision below by holding that conditions attached to a sentencing order satisfy the "written statement" requirement; or (2) overrule *Ross*'s suggestion that ignorance of the law is a defense.

Reasons for Granting the Petition

1. The court of appeals has waffled on what satisfies the requirement of being provided with a written statement, and this Court should resolve that conflict. In *O'Neal v. State*, the court of appeals held that the commitment order there didn't satisfy that requirement because there was no evidence that "O'Neal received, read, signed, or initialed" it. 2010 Ark. App. 241, at 3. But more recently (and correctly), *Valencia v. State* held that conditions in a sentencing order *did* satisfy Section 303(e)(2). 2016 Ark. App. 176, at 5. And it did so despite no evidence that the probationer was personally "served" with it because the circuit clerk is always "responsible for forwarding a copy of the sentencing order to the counsel of record for the defendant." *Id.*

The decision below attempted to harmonize those cases, noting that the *Valencia* probationer had made restitution payments showing an awareness of the order's conditions while there was no similar evidence in *O'Neal*. Op. at 5-6. But as actually applied by the court of appeals here, that's a distinction without a difference because the court of appeals concluded that Section 303(e) requires a probationer personally receive a written statement of conditions, rather than through her attorney. And that wasn't true in *Valencia*. So this case cannot be squared with *Valencia*. Indeed, if anything, this case is more like *Valencia* because it's nonsense to suggest that Trudo didn't know she couldn't commit the *same felonies* that led to her original conviction and sentence. This Court should resolve that inconsistency and affirm the circuit court's order.

2. Alternatively, this Court should grant review here and overrule *Ross v. State*. That case purported to interpret Section 303's written-statement requirement and concluded that probationers cannot be revoked for the commission of further crimes unless they receive written notice that they cannot break the law while on probation. As then-Judge Tom Glaze noted shortly after that decision, "no member" of the court of appeals "agree[d] that the rule announced in *Ross* . . . [was] correct." *Neely v. State*, 7 Ark. App. 238, 242 (1983) (Glaze, J. dissenting); *see also State v. Kunkel*, 455 N.W.2d 213, 215 (N.D. 1990) (disagreeing with *Ross*). It violates the maxim that "ignorance of the law . . . is never an excuse." *Williams v. State*, 346 Ark. 304, 309 (2001); Oliver Wendell Holmes, THE COMMON LAW 41 (M. Howe ed. 1963) (1881) ("Ignorance of the law is no excuse."). And it ignores the fact that probation is always, by definition, conditioned on not committing further crimes. *See Probation*, Black's Law Dictionary (2nd Ed. Online), *available at* https://thelawdictionary.org/probation/. ("[A]llowing a person convicted . . . to go at large, under a suspension of sentence, during good behavior").

Thus, on its face, Section 303(e)(2) cannot be read in the manner suggested below because it would make ignorance of the law a defense and hand repeat wrongdoers a defense that the law plainly doesn't provide. Indeed, this case aptly illustrates *Ross*'s weakness since—as interpreted by the court of appeals—it would mean that a probationer could recommit the *same* offense that led to her initial conviction and escape punishment on ignorance grounds. That isn't the law, and this Court should grant review, make that clear, and affirm the circuit court's order.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I, Nicholas J. Bronni, certify that on March 15, 2023, I electronically filed the foregoing document with the Clerk of the Court using the eFlex system which shall send notification of such filing to all counsel of record.

I further certify that the foregoing document has been mailed, by United States Postal Service, postage prepaid, to:

Honorable Michael Medlock
Circuit Judge
Courthouse
300 Main Street
Van Buren, AR 72956

/s/ Nicholas J. Bronni
Nicholas J. Bronni

CERTIFICATE OF COMPLIANCE

I, Nicholas J. Bronni, certify that this document is in compliance with the requirements of Administrative Order Number 19 concerning confidential information. Further, I certify that this petition is not more than three double-spaced pages in length and is therefore in compliance with Arkansas Supreme Court Rule 2-4(b). This petition does not contain external hyperlinks.

/s/ Nicholas J. Bronni
Nicholas J. Bronni